

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 01/26/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER ABOVE.

Zoom link-

<https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhldz09>

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C22-02399
CASE NAME: ZEBRACH VS. BARNES
HEARING ON PETITION IN RE: APPROVAL OF COMPROMISE OF CLAIM
FILED BY: ZEBRACK, DAVID
TENTATIVE RULING:

Plaintiff David ZeBrack, as Conservator of the Estate and Person of Jane Doe, a Conservatee ("Plaintiff") filed a Petition to Approve Compromise of Claim on September 10, 2025 (the "Petition to Approve Compromise") seeking court approval of the compromise and proposed disposition set forth therein. The Petition to Approve Compromise was set for hearing on January 26, 2026.

Analysis

The Petition to Approve Compromise is unopposed. A Proof of Service reflects service of the petition on September 10, 2025. The Court has considered the Petition to Approve Compromise and finds the

terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The subject compromise is APPROVED and the Petition to Approve Compromise GRANTED.
2. Plaintiff to submit a proposed form of order.

2. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: PROTECTIVE ORDER AND FOR SANCTIONS**
FILED BY: CMD SALOON, LLC
TENTATIVE RULING:

Defendant and cross-complainant CMD Saloon, LLC (“CMD”) filed a Motion for Protective Order and for Sanctions on September 9, 2025 (the “Motion for Protective Order”). The Motion for Protective Order was set for hearing on January 26, 2026. Notice of the motion was duly given. See Notice of Motion for Protective Order filed December 16, 2025. No opposition papers were filed. See Non-Opposition filed January 14, 2026.

Background

The moving party’s supporting declaration summarizes the discovery requests served on the moving party CMD by defendant and cross-defendant Misty Leone (“Ms. Leone”) in this case. See Declaration of David S. Pearson filed September 9, 2025 (“Pearson Decl.”), ¶¶2-3.

The two most recent sets of discovery which and the requests that are the subject of this motion are (1) a set of Form Interrogatories—General, Set One (the “Form Interrogatories”) and (2) a set of Requests for Admission, Set One (the “RFAs”). See Pearson Decl., **Exhibits A and B**, respectively. The RFAs consist of 35 separate requests for admission. These two discovery requests are referred to hereinafter as the “Discovery Requests.”

CMD’s counsel sought to meet and confer about the Discovery Requests. See Pearson Decl., ¶4 and **Exhibit C** thereto. The meet and confer communication outlined CMD’s concerns. *Id.* CMD asserted that form interrogatories were already previously propounded by Ms. Leone on December 3, 2024 and it was improper to propound the same requests again in the manner done by Ms. Leone. *Id.* CMD also asserted that Ms. Leone had previously propounded requests for admissions with “over 85 RFAs” and the latest set was erroneously labeled as a “Set One,” containing another 35 separate requests for admissions without the required declaration for additional discovery. *Id.*

Analysis

Civil discovery in California is governed by the Civil Discovery Act. See Code Civ. Proc. §§ 2016.010–2036.050. The Civil Discovery Act provides litigants with the right to broad discovery. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 402. In general, any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Code Civ. Proc. § 2017.010; see *Sinaiko Healthcare Consulting,*